

Rajendra Singh v. State of U.P.

Allahabad High Court · Division Bench · 30 March 2017 · Writ-C No. 13457 of 2017 · **Writ disposed; petitioner left to invoke clause 6.5.**

HEADNOTE

A consumer disputing electricity bills, including bills said to have been raised before the date of a new connection, is to invoke Clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ court will not decide the billing dispute on merits and will dispose of the petition leaving that remedy open.

FACTUAL SUMMARY

Rajendra Singh petitioned the Allahabad High Court against electricity bills. He said a new connection was given only in January 2017, but the department had billed him from 2014. Nothing on the record showed that he had taken a temporary construction connection on the plot. The Division Bench did not examine the bills or the alleged pre-connection supply on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute remedy

HOLDING

Clause 6.5 of the Electricity Supply Code, 2005 may be invoked to settle a dispute about electricity bills. The writ petition challenging bills allegedly raised from 2014 though a new connection was given only in January 2017 was disposed of, leaving that Code remedy open, without deciding the bills on merits. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer disputing electricity bills, including bills said to have been raised before the date of a new connection, is to invoke Clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ court will not decide the billing dispute on merits and will dispose of the petition leaving that remedy open. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER BILLS FROM 2014 WERE PAYABLE WHEN THE NEW CONNECTION WAS GIVEN ONLY IN JANUARY 2017

Left open for Clause 6.5 of the Supply Code. ¶ 1